

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Vale	Team: Squad #06	CCRB Case #: 201703383	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/01/2017 6:00 PM	Location of Incident: Corner of Grand Concourse and East 198th Street	18 Mo. SOL 11/1/2018	Precinct: 52		
Date/Time CV Reported Tue, 05/02/2017 11:08 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/02/2017 11:08 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Lindquist	06307	955068	052 PCT
2. POM Edgar Rivera	05576	955381	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM James Lindquist	Abuse: Police Officer James Lindquist stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Edgar Rivera	Abuse: Police Officer Edgar Rivera stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM James Lindquist	Abuse: Police Officer James Lindquist questioned § 87(2)(b)	C . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 2, 2017, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board (CCRB) via telephone on behalf of § 87(2)(b).

On May 2, 2017, at approximately 6pm, PO James Lindquist and PO Edgar Rivera of the 52nd Precinct stopped § 87(2)(b)'s vehicle on the corner of Grand Concourse and East 198th Street in the Bronx, for a defective brake light located on the rear of § 87(2)(b)'s vehicle (**Allegations A and B**). § 87(2)(b) the front passenger of the vehicle, took out his cell phone to record the incident. PO Lindquist questioned § 87(2)(b) regarding whether he had ever been arrested and fingerprinted in the past (**Allegation C**). After a few minutes, PO Lindquist issued § 87(2)(b) a verbal warning noting the infraction and allowed him to leave the location without an arrest or summons.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

Video Footage

- § 87(2)(b) provided video footage that he recorded during this incident which shows the entire vehicle stop. The original videos can be viewed in IAs #18 and #19, and a snag-it version of the videos can be viewed in IA#62 (Board Review 01).
- Relevant clips of the videos have been attached in the relevant portions of the Findings and Recommendations Section below.



201703383_20170526_1222_DM.mp4

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected to mediate § 87(2)(b).
- According to the NYC Comptroller's Office, as of June 28, 2017, § 87(2)(b) has not filed a Notice of Claim regarding this incident (Board Review 02).
- According to the NYC Comptroller's Office, as of July 20, 2017, § 87(2)(b) has not filed a Notice of Claim regarding this incident (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- [§ 87(2)(b)] has one prior CCRB complaint (Board Review 05).
 - [§ 87(2)(b)]
- [§ 87(2)(b)] has three cases currently open with the CCRB: [§ 87(2)(b)]
- [§ 87(2)(b)] has no prior CCRB complaint.
- PO Lindquist has been a member of the NYPD for four years and has no prior CCRB complaint (see officer history). He is currently involved in open CCRB case #201703447, [§ 87(2)(b)]
- PO Rivera has been a member of the NYPD for four years and has two allegations in two cases with no substantiated allegations (see officer history). He is currently involved in open CCRB case #201702768, and case #201703447, [§ 87(2)(b)]

Potential Issues

- [§ 87(2)(b)] a witness in this incident and who was seated in the back seat, provided a phone statement on May 9, 2017. He failed to appear for scheduled interview on May 15, 2017. On May 31, 2017, [§ 87(2)(b)] stated that he was no longer interested in participating in this complaint. Therefore, the investigation was unable to obtain verified statement from [§ 87(2)(b)]
- The CCRB was unable to obtain a statement from [§ 87(2)(b)] a victim in this incident. Between May 5, 2017, and May 25, 2017, two please call letters were sent to [§ 87(2)(b)] which were not returned by the U.S. Postal Service. On May 2, 2017, [§ 87(2)(b)] was contacted and an automated message stated that the voice mailbox had not been set up. On May 9, 2017, [§ 87(2)(b)] stated that he would consult with [§ 87(2)(b)] regarding his participation in the complaint prior to providing a statement. Between May 16, 2017, and May 31, 2017, three additional calls were made to [§ 87(2)(b)] and on all three occasions an automated message stated that the voice mailbox had not been set up. On May 31, 2017, [§ 87(2)(b)] stated that [§ 87(2)(b)] had informed him that he did not wish to participate in this complaint. Therefore, the investigation was unable to obtain a statement from [§ 87(2)(b)] for this incident.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED].

Allegation A – Abuse of Authority: Police Officer James Lindquist stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: Police Officer Edgar Rivera stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that as § 87(2)(b) was driving southbound on Grand Concourse in the Bronx, a marked police vehicle ordered him to pull over (Board Reviews 06 and 07). § 87(2)(b) did not observe § 87(2)(b) commit any traffic violations as he was driving. § 87(2)(b) pulled over on the corner of Grand Concourse and East 198th Street. PO Lindquist and PO Rivera approached § 87(2)(b)'s vehicle. PO Lindquist informed § 87(2)(b) that he had been pulled over for a broken brake light. After a few minutes, PO Lindquist issued § 87(2)(b) a verbal warning noting the infraction and allowed him to leave the location without an arrest or summons.

§ 87(2)(b) a witness in this incident, stated that § 87(2)(b)'s vehicle was in good condition with no broken lights including no broken brake lights (Board Review 08).

As previously explained, several unsuccessful attempts were made to contact § 87(2)(b) a victim in this case, in order to obtain a statement regarding the incident.

Video footage for this incident shows PO Lindquist informing § 87(2)(b) that he had pulled over § 87(2)(b) because “his brake light is out.”



201703383_20170724_1107_DM.mp4

PO Lindquist stated that both he and PO Rivera observed § 87(2)(b)'s vehicle in front of them with a defective brake light. PO Lindquist did not recall which brake light on § 87(2)(b)'s vehicle was not working. Officers followed § 87(2)(b) for several blocks before pulling him over on the corner of Grand Concourse and East 198th Street (Board Review 09).

PO Rivera corroborated that he and PO Lindquist saw a defective brake light on the back of § 87(2)(b)'s vehicle. He did not recall which brake light was not working but believed it may have been the third brake light (Board Review 10). After following § 87(2)(b)'s vehicle for approximately one minute, both officers decided to stop the vehicle.

No documentary evidence was obtained for this incident as PO Lindquist and PO Rivera did not prepare a stop and frisk report for § 87(2)(b). They did not have any memo book entries regarding this incident. There was no Event created for this incident. As noted, PO Lindquist issued § 87(2)(b) a verbal warning of the infraction and allowed him to leave the location without an arrest or summons.

§ 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED] It is therefore recommended that **Allegations A** and **B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: PO James Lindquist questioned § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that PO Lindquist asked § 87(2)(b) several questions about his driver's license and his driving record (Board Reviews 06 and 07). § 87(2)(b) responded that he was aware that he needed to update his driver's license photograph and that he had a good driving record. PO Lindquist then asked § 87(2)(b) if he had ever been arrested and fingerprinted in the past. § 87(2)(b) replied yes to both questions.

PO Lindquist stated that it was possible that he asked § 87(2)(b) if he had ever been arrested and fingerprinted (Board Review 09). He stated that these are general questions that he asks of drivers.

Video footage recorded by § 87(2)(b) for this incident shows PO Lindquist conversing with § 87(2)(b) about the photograph on his driver's license. PO Lindquist then asks § 87(2)(b) if he had ever been arrested. § 87(2)(b) replies that he has been arrested but not charged with anything. PO Lindquist then asks § 87(2)(b) if he had ever been fingerprinted to which § 87(2)(b) responds yes.



201703383_20170720_1159_DM.mp4

An officer may stop and question a person when the officer has a reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor. People v. DeBour, 40 N.Y.2d 210, 233 (1976) (Board Review 11). An officer cannot ask accusatory questions without founded suspicion of criminality. People v. Hollman, 79 N.Y.2d 191 (1992) (Board Review 12).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation C be **substantiated**.

[illegible][illegible]

Squad: 6

Investigator: _____
Signature

_____ Diana Vale _____
Print Date

Squad Leader: _____ Jessica Peña _____

Reviewer:

Title/Signature

Print

Date